

8.	23CV1187	MOORE v. HANSEN
Motion for Interlocutory Judgment and to Appoint Partition Referee		

This suit is a partition action that seeks the sale of real property containing a single-family home located at 3940 Freedom Road, Placerville, CA 95667, (the "Property"). On March 13, 2026, this Court granted Defendant's Motion for Judgment on the Pleadings, Motion to Compel Responses, and Motion to Deem Requests for Admission Admitted, but did not enter an interlocutory judgment, appoint a referee, or give the referee instructions.

Defendant and Cross-Complainant moves for the Court to enter an interlocutory judgment ordering the Property to be sold, appoint Franco Garcia to sell the Property, and provide instructions as set forth in the Proposed Order.

Code of Civil Procedure section 873.010 provides that this Court "shall appoint a referee to divide or sell the Property as ordered by the court." Similarly, Section 873.020 states that "the court in its discretion may appoint a referee for sale and a referee for division, or may appoint a single referee for both."

Code of Civil Procedure section 873.060 provides that "[t]he referee may perform any acts necessary to exercise the authority conferred by this title or by order of the court." Similarly, Code of Civil Procedure section 873.070 provides that "[t]he referee or any party may, on noticed motion, petition the court for instructions concerning the referee's duties." Thus, the Defendant requests that the Court issue the following instructions concerning the referee's duties concerning the partition and sale of the Property: that the property be sold "as-is", for cash, that the notice of sale shall be given pursuant to statute, that the referee shall provide the Court with the details of the sale, and that the Court shall retain jurisdiction.

There is no Opposition.

TENTATIVE RULING #8:

MOTION FOR INTERLOCUTORY JUDGMENT AND TO APPOINT PARTITION REFEREE IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.